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Tentative Ruling

Re: ***LS Power Grid California LLC v. Westlands Water District et al.***
Superior Court Case No. 26CU01426

Hearing Date: September 22, 2026 (Dept. 503)

Motion: By plaintiff LS Power Grid California, LLC for Order of
Prejudgment Possession

Tentative Ruling:

To grant. (Code Civ. Proc., § 1255.410.)

Explanation:

Plaintiff LS Power Grid California, LLC ("Plaintiff") moves for an order of prejudgment possession for an easement under Code of Civil Procedure section 1255.410. No opposition was filed to Plaintiff's motion.

Code of Civil Procedure section 1255.410 requires that Plaintiff describe the property they are seeking to take possession of, the date after which they are seeking possession, specific codified language, and proper notice of the motion must be given to defendants. Plaintiff has done so here.

Further, if the motion is unopposed, Plaintiff must show that they are entitled to take the property by eminent domain and that Plaintiff has deposited an amount that satisfies Code of Civil Procedure section 1255.010. (Code Civ. Proc., § 1255.410, subd. (d)(1).) Plaintiff has established they are entitled to take the property by eminent domain. (Bratcher Decl., ¶¶ 2-9.) Plaintiff has also demonstrated that they have deposited an amount consistent with Code of Civil Procedure section 1255.010. (Santolucito Decl., ¶ 1 & Exh. 1; Notice of Deposit, Exh. 1.) Accordingly, Plaintiff's motion for prejudgment possession is granted.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS on 9/17/2026.
(Judge's initials) (Date)

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Tentative Ruling

Re: ***Durbrow v. Rodriguez***
Superior Court Case No. 21CECG00194

Hearing Date: September 22, 2026 (Dept. 503)

Motion: by Plaintiff to Set Aside Dismissal

Tentative Ruling:

To grant. (Code Civ. Proc., § 473, subd. (b).)

A hearing on the court's own motion for dismissal of the entire action pursuant to Code of Civil Procedure section 583.310 is set for Wednesday, October 28, 2026, at 3:30 p.m., in Department 503. (Code Civ. Proc., §§ 583.310, 583.360.) All papers are to be filed in compliance with Code of Civil Procedure, section 1005.

Explanation:

Attorney Affidavit of Fault:

The court is empowered to relieve a party "upon any terms as may be just ... from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc. § 473, subd. (b).) Where a motion seeking this relief is based on an "attorney affidavit of fault," the relief is mandatory. Otherwise, relief is discretionary. A limitation on the mandatory relief is that the court may deny relief if it finds the default or dismissal "was *not* in fact caused by the attorney's mistake, inadvertence, surprise or neglect" (e.g. where the attorney is attempting to "cover up" for the client). (*Id.*)

Moreover, the law favors judgments on the merits. Where dismissals are the procedural equivalent on a default; i.e., those which deprive plaintiffs of their day in court, relief is favored. (*Leader v. Health Indus. Of America, Inc.* (2001) 89 Cal.App.4th 603, 618.)

Here, counsel submits that the dismissal of the action was caused by his inadvertence. The court dismissed the action because plaintiff (or plaintiff's counsel) failed to appear at the Order to Show Cause re Dismissal hearing ("OSC"). Mr. Belli indicates that he failed to appear at the OSC, because he failed to calendar the hearing date. (Belli Decl., ¶ 3.) Had Mr. Belli properly noted the date for the OSC hearing, Mr. Belli would have made an appearance to the OSC. As such, it is clear that Mr. Belli's mistake at least proximately caused the dismissal of the action.

Accordingly, the motion for relief from the dismissal is granted.

The court takes judicial notice of its own docket and notes that plaintiff commenced the instant action against defendant on January 22, 2021, which the court calculates to be approximately five years and eight months ago. "An action shall be brought to trial within five years after the action is commenced against the defendant." (Code Civ. Proc., § 583.310.) The court sets its own motion for dismissal pursuant to Code of Civil Procedure section 583.310. (Code Civ. Proc., § 583.360, subd. (a).)

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 9/18/2026.
(Judge's initials) (Date)